

EVIDENCE LOG

For Back Conditions (Lumbar/Thoracic Spine) VA Disability Claims

The Smoking Gun Evidence

After years of navigating the VA claims process—as veterans ourselves—we discovered something that changes everything: **the single most powerful piece of evidence you can submit isn't officially part of a Fully Developed Claim.**

"No more convincing. Just corroboration."

When you walk into a C&P exam without this documentation, the examiner's job is to **investigate whether your condition exists and how severe it is**. They're playing detective. You're trying to convince them.

When you walk in WITH a properly completed Evidence Log, the dynamic completely shifts. The examiner's job becomes **corroborating what you've already documented**. They're not investigating—they're verifying. That's a fundamentally different exam.

How VA Raters Actually Evaluate Your Claim

Every VA disability rating—regardless of condition—is based on three core factors. Raters are trained to look for evidence of these specific elements:

Factor	What It Means	What Raters Look For
FREQUENCY	How often do your symptoms occur?	Daily? Weekly? Constant? Episodic? Document specific patterns.

Factor	What It Means	What Raters Look For
SEVERITY	How intense are your symptoms when they occur?	Mild, moderate, severe? Specific descriptions of pain levels, intensity of pain, etc.
FUNCTIONAL IMPACT	How do symptoms affect your daily life and ability to work?	Can't work? Can't sleep? Can't maintain relationships? Specific limitations.

Why This Evidence Log Works: The template you're about to use is specifically designed to capture all three factors in a format that's easy for raters to process. When a rater opens your file and sees 30 days of documented symptoms with frequency, severity, and functional impact clearly recorded, they don't have to guess or interpret. The evidence speaks for itself.

DO NOT FILE ANY CLAIM UNTIL THIS LOG IS COMPLETED AND INCLUDED WITH YOUR SUBMISSION

Back Conditions: Condition-Specific Guidance

Back conditions (including lumbar strain, degenerative disc disease, herniated discs, and spinal stenosis) are rated under 38 CFR § 4.71a using either the General Rating Formula for Diseases and Injuries of the Spine or the Formula for Rating Intervertebral Disc Syndrome (IVDS). Ratings are based primarily on **range of motion limitations** and **incapacitating episodes**.

What C&P Examiners Measure:

- **Range of Motion:** Forward flexion, extension, lateral flexion (both sides), rotation (both sides)
- **Pain on motion:** Where in the range does pain begin? Does pain limit motion?
- **Flare-ups:** How often? How severe? How long do they last? What triggers them?
- **Incapacitating episodes:** Periods requiring bed rest PRESCRIBED by a physician
- **Neurological symptoms:** Radiculopathy (pain/numbness/weakness radiating to legs)
- **Functional impact:** Difficulty sitting, standing, walking, lifting, bending

Back Condition Rating Levels (General Formula):

Rating	Range of Motion Criteria
10%	Forward flexion greater than 60° but not greater than 85°; OR combined ROM greater than 120° but not greater than 235°; OR muscle spasm/guarding.
20%	Forward flexion greater than 30° but not greater than 60°; OR combined ROM not greater than 120°; OR muscle spasm or guarding severe enough to result in abnormal gait or abnormal spinal contour.
40%	Forward flexion 30° or less; OR favorable ankylosis of entire thoracolumbar spine
50%	Unfavorable ankylosis of entire thoracolumbar spine
100%	Unfavorable ankylosis of entire spine

THE FLARE-UP FACTOR: C&P EXAMS CAPTURE YOUR RANGE OF MOTION ON ONE DAY. BUT THE VA ACKNOWLEDGES THAT YOUR CONDITION MAY BE WORSE DURING FLARE-UPS. YOUR

EVIDENCE LOG DOCUMENTS THESE FLARE-UPS SO THE EXAMINER CAN ESTIMATE ADDITIONAL FUNCTIONAL LOSS DURING FLARES. THIS CAN INCREASE YOUR RATING.

How to Use the Evidence Log for Back Conditions:

Document your daily pain levels, but more importantly, document what you **cannot do** because of your back. The VA rates based on functional impairment, not just pain. Also track flare-ups meticulously—when they happen, how severe, what triggered them, and how long they lasted.

Strong Entry Example: "Pain level 6/10 at rest, 8/10 with movement. Could not bend to tie shoes—wife had to help. Standing limited to 10 minutes before pain forced me to sit. Walking limited to approximately 100 yards. Could not lift laundry basket (~15 lbs). Shooting pain down left leg when sitting more than 20 minutes. Took 800mg ibuprofen at 0800 and 1400 with minimal relief. Had to lie down flat for 2 hours mid-day. Cancelled dinner plans because cannot sit in restaurant chairs."

FLARE-UP Entry Example: "FLARE-UP DAY 1: Woke with severe spasm after [trigger - yard work yesterday]. Pain 9/10. Cannot bend forward at all. Getting out of bed took 15 minutes. Called in sick to work. Spent most of day lying flat with ice/heat rotation. Could not prepare meals—wife brought food to bedroom. Pain medication barely touching it."

Weak Entry Example: "Back hurt today. Took some Advil."

Completed Example: 7-Day Evidence Log

Below is an example of a properly completed Evidence Log. Notice how each entry captures specific details about symptoms, their severity, and their impact on daily functioning. Your log should follow this format.

Date	Pain Level (0-10)	Symptoms & Limitations	Functional Impact
Mon 1/6	AM: 5 PM: 7	Stiffness upon waking—30 min to loosen up. Pain increased with sitting at desk. Shooting pain down left leg after 2 hrs sitting.	Could not tie shoes. Needed sit-stand desk adjustments every 20 min. Could not help with dinner cleanup.
Tue 1/7	AM: 6 PM: 8	Spasm mid-morning reaching for file. Sharp pain with any twisting. Radiating pain L leg to knee.	Had to leave office early. Cannot sit in car comfortably. Driving home painful—every bump was agony.
Wed 1/8	AM: 7 PM: 7	FLARE-UP DAY 1. Woke with severe stiffness. Could not bend past 20°. Locked up.	Called in sick. Spent day alternating ice/heat lying flat. Wife had to help me to bathroom.
Thu 1/9	AM: 8 PM: 6	FLARE-UP DAY 2. Pain 8/10 upon waking. Muscle relaxer helped by afternoon. Still cannot bend or pick anything up.	Second sick day. Did not leave bedroom/bed except for bathroom. Could not sit in waiting room at doctor's.
Fri 1/10	AM: 6 PM: 5	Flare subsiding but still significant. Forward flexion maybe 45°. Nerve pain stopped (can feel toes).	Worked from home (cannot sit in office chair this long). Standing desk 50% of day.
Sat 1/11	AM: 5 PM: 6	Better but not baseline. Pain with prolonged any position. Changed position every 15-20 min.	Could not do planned yard work. Could not lift grandchild (15 lbs). Grocery shopping limited—wife carried bags.

Date	Pain Level (0-10)	Symptoms & Limitations	Functional Impact
Sun 1/12	AM: 4 PM: 5	Closest to baseline this week. Still cannot bend fully. Aching constant (4/10). Leg numbness returns if I sit.	Light activity only. Rested frequently. Could not sit through entire church service—had to stand in back.

Your Evidence Log: 30-Day Template

Instructions: Complete one row per day for at least 30 consecutive days before your C&P exam or claim submission. Be specific, honest, and focus on frequency, severity, and functional impact. Print additional copies as needed.

VETERAN NAME: _____

CONDITION: Back Condition / Spine

CLAIM #: _____

START DATE: _____

Date	Pain Level (0-10)	Symptoms & Limitations (stiffness, spasms, radiating pain, ROM)	Functional Impact (work, mobility, daily activities)
Day 1 __/__/__			
Day 2 __/__/__			
Day 3 __/__/__			
Day 4 __/__/__			
Day 5 __/__/__			
Day 6 __/__/__			

Date	Pain Level (0-10)	Symptoms & Limitations (stiffness, spasms, radiating pain, ROM)	Functional Impact (work, mobility, daily activities)
Day 7 __/__/__			

Date	Pain Level	Symptoms & Limitations	Functional Impact
Day 8 _/_			
Day 9 _/_			
Day 10 _/_			
Day 11 _/_			
Day 12 _/_			
Day 13 _/_			
Day 14 _/_			

Date	Pain Level	Symptoms & Limitations	Functional Impact
Day 15 _/_			
Day 16 _/_			
Day 17 _/_			
Day 18 _/_			
Day 19 _/_			
Day 20 _/_			
Day 21 _/_			

Date	Pain Level	Symptoms & Limitations	Functional Impact
Day 22 _/_			
Day 23 _/_			
Day 24 _/_			
Day 25 _/_			
Day 26 _/_			
Day 27 _/_			
Day 28 _/_			

Date	Pain Level	Symptoms & Limitations	Functional Impact
Day 29 __/__/__			
Day 30 __/__/__			

VETERAN CERTIFICATION: I certify that the information recorded in this Evidence Log is true and accurate to the best of my knowledge. I understand that false statements may result in denial of benefits or other penalties.

Veteran Signature

Date

Witness (optional)

Date

DISCLAIMER: This template is provided for educational purposes only. It is not legal advice and does not constitute representation before the VA. Consult with an accredited Veterans Service Organization (VSO) or VA-accredited attorney for assistance with your specific claim.